

Court No. - 2

Case :- WRIT - C No. - 1027 of 2023

Petitioner :- Ravindra Kumar Alias Ravindra Soni

Respondent :- State Of U.P. Thru. Prin. Secy. Energy Lko. And Others

Counsel for Petitioner :- Ajeet Kumar Yadav, Akhtar Ali, Subhash Chandra Yadav

Counsel for Respondent :- C.S.C., Amit Sharma

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

(1) Heard the learned counsel for the petitioner and the learned Standing counsel who appears on behalf of the State-respondents nos.1 to 4.

(2) The present writ petition has been preferred by the petitioner for quashing of the Recovery Notice dated 28.10.2022 issued by the Tehsildar, Tehsil Purwa, District Unnao, by which the petitioner has been directed to deposit the Electricity dues within a period of 15 days. It is further prayed for a direction to be issued to the opposite parties to accept the entire balance electricity due amount in easy installments after rectifying bills and adjusting the amount of Rs.30,000/- deposited by the petitioner and not to take any coercive action against the petitioner.

(3) It is the case of the petitioner that the electricity connection was applied on 07.10.2014 and it was installed in the year 2018 in the premises of the petitioner. Since the connection was installed, no electricity bill was ever served upon the petitioner and all of a sudden the statement of electricity dues of Rs.2,78,047/- has been served for payment of electricity dues with effect from 01.10.2016 to 29.07.2022. The petitioner has moved a Representation on 06.12.2022 before the Respondent no.2 with a request to conduct an Enquiry of the shop of the petitioner. On the application of the petitioner, an enquiry was conducted as per Rules. In the meantime, on 03.01.2023, the petitioner has deposited Rs.1000/- and Rs.14,000/- before the opposite party no.3 and again deposited Rs.15,000/- on 31.01.2023.

(4) On the other hand, learned counsel for the Respondent nos.2 & 3 has submitted that if there is any dispute regarding accuracy of any of the bill, the petitioner has an alternative statutory remedy under Clause 6.5 (b)

of Uttar Pradesh Electricity Supply Code, 2005, for redressal of his grievance by filing a complaint before the Competent Authority, who shall decide the same within a period of **seven days**. It is further submitted that in the case of the petitioner the Competent Authority is the Executive Engineer of the Division concerned.

(5) In view of the above, this writ petition is **finally disposed of** with a liberty to the petitioner to raise the dispute regarding accuracy of the electricity bills under Clause 6.5 (b) of the Uttar Pradesh Electricity Supply Code, 2005. If any such grievance is raised by the petitioner, before the Competent Authority, he shall decide the same within the period as provided under the Code.

(6) Till the decision is taken by the Competent Authority on the application of the petitioner, the Recovery proceedings shall be kept in abeyance. The petitioner is at liberty to make a complaint under the Code within a **period of three days from today** which shall be decided **within seven days**.

(7) In case the petitioner fails to make an application within such period, the Department is free to proceed against the petitioner to recover the said dues.

Order Date :- 8.2.2023

N.PAL